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SR. SECRETARY

Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 93RD REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON SEPTEMBER 3, 2024

PRESENT:

Hon. Harvey S. Manawatao Municipal Vice-Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada SB Member
Hon. Nilo S. Bigno SB Member
Hon. Rencio P. Valeroso SB Member
Hon. Renato A. Calañas SB Member
Hon. Michael C. Escuyos SB Member
Hon. Elvie U. Ohao SB Member
Hon. Tanie A. Quillano SB Member

EX-OFFICIO MEMBER:

Hon. Jeff Anthony D. Beloria SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Carmelito E. Valeroso SB Member

EX-OFFICIO MEMBER:

Hon. Blandena V. Sugian ABC President

SECTORAL REPRESENTATIVE:

Hon. Ricardo S. Iligan IP Mandatory Representative

ORDINANCE NO. 16
Series of 2024

**“AN ORDINANCE REGULATING THE OPERATION AND MANAGEMENT OF PIGGERY, POULTRY FARMS
AND OTHER LIVESTOCK RAISING IN THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR”**

Author: Hon. Rencio P. Valeroso

Enacted: All Members present

EXPLANATORY NOTE

Regulating the operation and management of piggery farm, poultry farms and other livestock operations is crucial for several reasons, first is health, second environmental impact and third economic effects.

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Health, disease control regulations help manage and prevent outbreaks of disease that can affect both animals and humans, such as avian flu or animal swine fever, this includes ensuring proper vaccination and biosecurity measures, for food safety, proper management practices ensure that meat and other products are safe for consumption, minimizing risk of contamination and ensuring public health.

Environmental impact, waste management regulations ensure that waste from livestock is handled properly to prevent pollution of soil and water sources.

Economic effects, proper regulation can improve the efficiency of operations by promoting best practices and reducing losses from disease and poor management, in general, effective regulation ensures that livestock operation contribute positively to public health, environmental sustainability and economic stability.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

ARTICLE I GENERAL PROVISIONS

Section 1. TITLE- This ordinance shall be known as the "An ordinance regulating the operation and management of piggery, poultry farms and other livestock raising in the Municipality of Carmen, Surigao del Sur.

Section 2. COVERAGE- This ordinance shall be enforced in all barangays of the Municipality of Carmen, Surigao del Sur.

Section 3. DECLARATION OF POLICIES AND PRINCIPLES- It is hereby declared to be the policy of the Municipality of Carmen, Surigao del Sur to require poultry and piggery owners to put a premium on pollution control and wastewater treatment facilities and to employ measures on how to minimize or eliminate health hazards and pollution which may be caused by piggeries and poultry farms if not properly regulated.

ARTICLE II OBJECTIVES

Section 4. OBJECTIVES- This Ordinance is enacted for the following objectives:

1) To ensure that all piggery, poultry and other livestock raising business and activities in the Municipality of Carmen, Surigao del Sur are compliant with all existing pertinent laws, rules and regulations, particularly those issued by the Department of Environment and Natural Resources, the Department of Agriculture and the Housing Land Use Regulatory Board as well as applicable local ordinances including this Ordinance.

2) To protect public health and safety and promote the general welfare with particular focus on minimizing, if not eliminating foul odor, fly infestation and water pollution.

3) To assist in the growth of piggery, poultry and livestock business and activities in the Municipality of Carmen, Surigao del Sur through regulated management and administration.

ARTICLE III DEFINITION OF TERMS

Section 5. DEFINITION OF TERMS-

1) **Animal Wastes-** means a material composed of excreta, with or without bedding materials and/or animal drugs, collected from poultry, ruminants or other animals except humans.



- 2) Backyard Farms- refers to raising of swine animals in household backyard.
- 3) Barangay Clearance- a permit given by the barangay where the business will be located.
- 4) Built-up areas- area that is full of houses, shops, offices and other buildings with very little open space.
- 5) Commercial Farms- shall refer to any parcel of land devoted to the raising or breeding of animals used for commercial purposes. It is generally managed and operated by the owner or a tenant.
- 6) Contract Growers- entities/individual engaged in raising animals based on an agreement with contracting party (company or individual). The contract grower provides housing, labor and other necessities in rearing animals.
- 7) Environmental Compliance Certificate- a document issued by the Department of Environment and Natural Resources (DENR) certifying that based on the representation of the project proponent, as reviewed and validated by the appropriate agency, the proposed project or undertaking will not cause a significant negative environmental impact and the proponent has complied with all the requirements.
- 8) Establishment- piggery, poultry or livestock farm.
- 9) Farrowing- is a term specific to swine that refers to the action of giving birth.
- 10) Fattening- shall refer to the processes whereby the hogs are fattened up to 200 pounds primarily for slaughter.
- 11) Inspection- an act by an official inspector to ensure compliance with the rules and regulations including but not limited to quality assurance program, hygiene and sanitation program, sanitation and standard operating procedures and hazard analysis control program.
- 12) Locational Clearance- see Municipal Zoning Clearance.
- 13) Livestock- includes the following animals: cattle, sheep, goats, bees, swine, poultry and equine animals.
- 14) Major Roads or Highways- refer to any city, provincial and national roads that link regional/provincial town centers and serving as the main transportation arteries.
- 15) Municipal Zoning Clearance- a permit that certifies that a proposed structure and/or use of land meet all requirements of the Municipal Zoning Code.
- 16) Nearer Groundwater- the nearest water beneath the earth's surface often between saturated soil and rock that supplies wells and springs.
- 17) Piggery Farms- any parcel of land devoted to raising or breeding of pigs/swine.
- 18) Porous Soil- soil where water easily passes through.
- 19) Poultry- domestic fowls collectively.
- 20) Poultry Farms- plot of land devoted to the raising of domesticated fowls, which serve as sources of eggs and meat for human consumption.



- 21) Proper Waste Disposal Management- an integrated system approach or process on the generation, segregation, storage, collection, transport, processing, recycling, recovery and final disposal or containment of waste material.
- 22) Rolling Terrain- refers to a hilly land surface.
- 23) Rural Area- a barangay that has a population less than 5,000.
- 24) Sanitary Permit- Certificate given to business applicants who were able to comply with the standards of the Sanitation Code of the Philippines.
- 25) Septic Tank- a sewage disposal tank in which anaerobic bacteria decompose a continuous flow of waste material.
- 26) Stockade- an enclosure.
- 27) Vermin- a group of insects or small animals such as flies, mosquitos, cockroaches, lice, bedbugs, mice and rats that are vectors of diseases.

ARTICLE IV LOCATIONAL CLEARANCE

Section 6. CLEARANCES- Piggery, poultry and other livestock/animal farms operating in the municipality shall be required to secure locational clearance or Municipal Zoning Clearance or Environment Clearance Certificate as required. Likewise, a barangay clearance is required before operating the same.

Section 7. LOCATIONAL REQUIREMENTS- Piggery, poultry and other livestock/animal farms shall conform to the following locational requirements:

- 1) Shall preferably be located in rural areas.
- 2) Shall preferably be located on a rolling terrain.
- 3) Flood prone areas and other environmentally critical areas like watershed, source of water supply shall be avoided.
- 4) Shall be located where the soil is well drained and porous.
- 5) Site should be planted with trees and vegetable crops to protect the animals from strong winds.
- 6) Shall be located 500 to 1,000 meters away from build-up areas (residential, commercial, institutional and industrial).
- 7) Shall be 500 meters away/ from major roads and/ or highways.
- 8) Shall be 25 meters away from food establishments.
- 9) Shall be away from the path of immediate urban expansion.

ARTICLE V MUNICIPAL TASK FORCE REGULATING THE OPERATION OF PIGGERY AND POULTRY FARMS

Section 8. COMPOSITION- The Municipal Task Force is hereby created to be composed of the following:



- Chairperson : Municipal Mayor
- Members : Municipal Health Officer
- Municipal Agriculturist
- Municipal Planning and Development Coordinator
- Municipal Environment and Natural Resources Officer
- SB Chairman Committee on Agriculture
- SB Chairman Committee on Environment
- All Barangay Captains
- Representative from the Hog Raiser
- Representative from the Poultry Raisers

Section 9. FUNCTIONS- The functions of the Municipal Task Force Regulating the Operation of Piggery and Poultry Farms are the following:

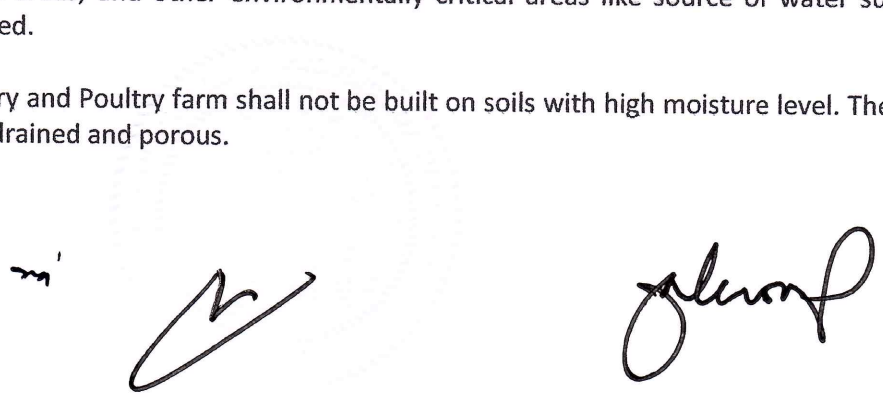
- 1) To conduct an inspection of existing backyard poultry farms and piggeries in the different barangays of the Municipality.
- 2) Coordinate with Barangay Officials in monitoring compliance of piggeries to existing environmental and health standards especially those that are close to residential areas.
- 3) Make appropriate recommendations on the measures to be undertaken by piggery owners and poultry farm owners to minimize or eliminate health hazards so that they can continue their operation.
- 4) To recommend measures on how to minimize or eliminate pollution which may be caused by piggeries and poultry farms if not regulated.
- 5) Perform other duties as may be directed by the Municipal Government.

Section 10. IMPLEMENTING AUTHORITY- The Municipal Task Force is hereby mandated as the lead agency tasked to implement and enforce this Ordinance. For this purpose, it may enlist the support of the Municipal Treasury’s Business Permit and Licensing Section, the Philippine National Police and any other Government Agency, as it may deem necessary.

ARTICLE VI
STANDARD REQUIREMENTS

Section 11. STANDARD REQUIREMENTS- The following are the requirements to establish a piggery and poultry farm:

- 1) Piggery and Poultry farms shall be situated preferably in a high topography and broad terrain for good ventilation. For proper drainage, the farms should be located in a rolling terrain. Flood prone areas, and other environmentally critical areas like source of water supply shall be avoided.
- 2) Piggery and Poultry farm shall not be built on soils with high moisture level. The soil must be well-drained and porous.



- 3) Commercial Piggery and Poultry farms shall be surrounded with a buffer zone to be planted with trees or shrubs.
- 4) Piggery and Poultry farm shall not be located within a twenty-five (25) meter's radius from sources of ground and surface drinking water.
- 5) Commercial Piggery and Poultry farms shall be at least one thousand (1,000) meters away from the build-up areas (residential, commercial, institutional and industrial) as designated in the Municipal Comprehensive Land Use Plan while backyard Poultry and Piggery farms shall be at least five hundred (500) meters away from such built-up areas.
- 6) Establishment of commercial farming shall be located in accordance to the zoning classification of the Municipality.
- 7) Commercial Piggery farms shall be five hundred (500) meters away from the national highway and major roads while commercial poultry farms shall be two hundred (200) meters away from the national highway and major roads.
- 8) Commercial Piggery and Poultry farms shall be at least one (1) kilometer away from one another to minimize spread of pests and to reduce concentration of air pollutants in a given area. Such gap of distance for backyard poultry and piggery farms shall be five hundred (500) meters.
- 9) The position of farm buildings which house the animals shall be oriented towards the direction of the wind and/or sunlight and on an east-west direction. The long axis of the building with a double pen shall be laid in a north south direction to give all pens benefits on sunlight.
- 10) Piggery farms are strictly required to construct biogas digester or standard septic tanks for animal waste disposal and conform with the following requirements:
 - a. It shall be watertight.
 - b. It shall be built in concrete and size proportional to the stock population.
 - c. It shall not be constructed under any building within twenty-five (25) meters radius from the nearest ground water.
- 11) Commercial Piggery and Poultry farms are encouraged to maintain a generator set sufficient to supply power to the farm buildings in order to avoid problems in the water supply, ventilation and cooling, heating and moisturizing needs of the animals and their wastes in case of power failure.

ARTICLE VII REGULATED ACTS

Section 12. It shall be unlawful to directly discharge animal wastes in any irrigation canal, river or riverbanks or any body of water. It shall be unlawful to raise livestock and poultry without proper housing and confinement following the minimum space requirement as specified in the Animal Welfare Act.

Section 13. All Poultry and Piggery farms must use such diet for their animals that minimizes foul odor in their waste and discharge.

Section 14. Backyard Poultry farm may be limited to Fifty (50) heads, exceed to this number of heads belongs to semi-commercial, Five Hundred (500) heads above belong to commercial but subject upon the recommendation and approval of the inspecting team.



Section 15. Backyard piggery within the town proper may be limited to a maximum of Ten (10) heads either fattener or sow, exceeded to this number of heads belongs to semi-commercial, but subject upon the recommendation and approval of the inspecting team, however in the barangays, a maximum of Fifteen (15) heads either fattener or sow, exceeds to this number of heads belongs to semi-commercial and also subject upon the recommendation and approval of the inspecting team.

Section 16. Backyard piggery within the town proper shall be limited to a maximum of two (2) heads for fattener purposes only. However, in barangays, a maximum of Five (5) heads of fattener and one (1) sow is allowed, provided to follow the proper waste provision.

Section 17. A backyard and commercial piggery or poultry should require a septic tank/reservoir or otherwise, proper waste disposal management must be hygienically observed and implemented.

Section 18. Stockade of gamecocks intended for trade and/or breeding shall be allowed only upon securing the necessary sanitary permit and provided that proper sanitary standards are maintained, such as:

- 1) Adequate water supply for drinking and cleaning and for other domestic purposes of at least thirty (30) liters per day/ Fifty (50) heads shall be provided in the establishment.
- 2) Every stockade shall be provided with a watertight, easy to carry and vermin-proof receptacle for manure and other litter arising within the premises of the stockade.
- 3) The stockade shall be located within twenty-five (25) meters from any ground and surface drinking water source nor shall it be located in flood-prone areas; Vermin abatement program should be maintained by the operator.
- 4) Disinfection shall be undertaken at least three (3) times a week or as frequent as necessary.
- 5) All poultry feeds shall be kept and stored under such condition that will limit the attraction and harborage of vermin.
- 6) Adequate sanitation shall be observed to prevent obnoxious odors that may arise from the establishments.
- 7) In residential areas, there should be no breeding of gamecocks and other types of poultry or livestock raising activities.

Section 19. Failure to maintain cleanliness and good sanitary surrounding at all times, is a sufficient ground for the revocation of licenses and permits for its operation.

Section 20. Existing piggery, poultry and other livestock/animal farms, in commercial quantities, within the residential/build-up areas shall be given six (6) months upon effectivity of this Ordinance to close or relocate in an area deemed to be suitable for the purpose.

**ARTICLE VIII
PENAL CLAUSE**

Section 21. The following penalties shall be imposed for any violation of this Ordinance:

ESTABLISHMENT:

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|----------------|---|
| First Offense | : Fine of One Thousand Pesos (Php1,000.00) |
| Second Offense | : Fine of Two Thousand Pesos (Php2,000.00) |
| Third Offense | : Closure of the Establishment and Revocation of Permit |



INDIVIDUAL:

- First Offense : Fine of One Thousand Pesos (Php1,000.00)
- Second Offense : Fine of Two Thousand Pesos (Php2,000.00)
- Third Offense : Fine of Two Thousand Five Hundred Pesos (Php2,500.00)

Section 22. Any person who shall interfere, hinder or oppose any officer or member of the Municipal Task Force Regulating the Operation of Piggery and Poultry Farms in the performance of their duty in the implementation of this Ordinance, or shall tear down, mutilate, deface or alter any billboard, streamer, poster or similar notices affixed to the premises in the enforcement of this Ordinance shall be guilty of misdemeanor and is punishable, upon conviction, by imprisonment of not more than six (6) months, or a fine not less than Two Thousand Five Hundred Pesos (Php2,500.00), or both, upon the discretion of the court.

Section 23. NO CONTEST PROVISION. Any person, individual or entity, who is apprehended or cited for violation, and who does not wish to contest the violation and is willing to pay voluntarily the fine imposed upon him/her prior to the filing of formal charges with the proper court, shall be allowed to pay said fine with the Municipal Treasurer to avoid being criminally prosecuted within thirty-six (36) hours from apprehension, otherwise the case shall be prosecuted within thirty-six (36) hours from apprehension.

**ARTICLE IX
SEPARABILITY/REPEALING/EFFECTIVITY CLAUSE**

Section 22. SEPARABILITY CLAUSE- If for any reason or reasons, any part or provision of this Ordinance shall be declared/deemed to be unconstitutional or invalid, other parts or provisions hereof which are not affected thereby shall continue to be in full force and effect.

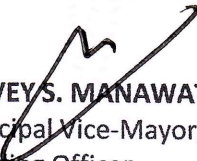
Section 23. REPEALING CLAUSE- All ordinances, resolutions, executive orders and other issuances which are inconsistent with any of the provisions are hereby repealed or modified accordingly.

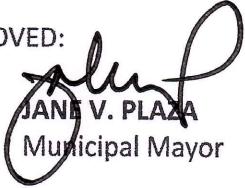
Section 24. EFFECITIVITY CLAUSE- This ordinance shall take effect fifteen (15) days after completion of its posting in at least three (3) conspicuous places in the Municipality.

ENACTED this 3rd day of September, 2024 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing ordinance.


MA. JULINA T. BORDA- JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:

HARVEY S. MANAWATAO
Municipal Vice-Mayor/
Presiding Officer

APPROVED:

JANE V. PLAZA
Municipal Mayor